in accordance with regulation B-3.7 of the BWM Convention, as set out in the annex to the present resolution;

2. INVITES Administrations to apply the annexed Procedure as soon as possible, or when the Convention becomes applicable to them;

3. URGES Member States to bring the annexed Procedure to the attention of shipowners, shipbuilders and manufacturers of ballast water management systems, as well as any other parties concerned; and

4. AGREES to keep the Procedure under review.

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Adopted on 15 July 2011
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ANNEX

PROCEDURE FOR APPROVING OTHER METHODS OF BALLAST WATER MANAGEMENT IN ACCORDANCE WITH
REGULATION B-3.7 OF THE BWM CONVENTION

1 INTRODUCTION

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ANNEX

PROCEDURE FOR APPROVING OTHER METHODS OF BALLAST WATER MANAGEMENT IN ACCORDANCE WITH
REGULATION B-3.7 OF THE BWM CONVENTION

1 INTRODUCTION

1.1 Regulation B-3.7 of the International Convention for the Control and Management of Ships' Ballast Water and Sediments, 2004 (the BWM Convention) permits the use of Other Methods of ballast water management to achieve at least the same level of protection to the environment, human health, property or resources as described in regulations B-3.1 to B-3.5, and approved in principle by the MEPC.

1.2 Those developing Other Methods should also take into account: safety

considerations relating to the ship and the crew; environmental acceptability (i.e. not causing greater environmental impacts than they solve); practicality (i.e. compatibility with ship design and operations); cost-effectiveness and economics; and biological effectiveness.

1.3 The Procedure for approving Other Methods of ballast water management in accordance with regulation B-3.7 of the BWM Convention (hereafter referred to as

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and operations); cost-effectiveness and economics; and biological effectiveness.

1.3 The Procedure for approving Other Methods of ballast water management in accordance with regulation B-3.7 of the BWM Convention (hereafter referred to as
"the Procedure"), aims at providing criteria for the evaluation and approval of Other Methods of ballast water management (hereafter referred to as "Other Methods").

1.4 This Procedure has been developed to ensure that these Other Methods provide at least the same level of protection to the environment, human health, property or resources as those methods permitted under regulations B-3.1 to B-3.5.

1.5 Other Methods of ballast water management are to be approved in principle by the Committee prior to approval of an Other Method by the Administration.

1.6 Systems based on an Other Method where Active Substances and Preparations are added to the ballast water, or are generated on board ships by the system, should also be subject to the approval by the Committee in accordance with the Procedure for approval of ballast water management systems that make use of Active Substances (G9).

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subject to the approval by the Committee in accordance with the Procedure for approval of ballast water management systems that make use of Active Substances (G9).

1.7 All shipboard systems based on an Other Method will also have to gain Type Approval or Prototype Approval, as appropriate , under the Guidelines for approval of ballast water management systems (G8), or Guidelines for approval of prototype ballast water treatment technologies (G10).

1.8 Where an Other Method cannot be type approved due to the nature of the method, the Administration should recommend to the Committee an appropriate method of recognition or certification.

1.9 The environmental impacts of any chemic al by-products and/or physical effects formed by an Other Method will also have to be evaluated by the Administration during the approval process, with respect to safety to the environment.

1.10 The Procedure identifies the information to be provided, identifies the responsible parties for providing such information and outlines the approval processes required by the Committee.

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PROCEDURE FOR APPROVING OTHER METHODS OF BALLAST WATER

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parties for providing such information and outlines the approval processes required by the Committee.

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1.11 The use of Other Methods of ballast water management should be consistent with the objectives of the Convention "to prevent, mi nimize and ultimately eliminate the risks to the environment, human health, property and resour ces arising from the transfer of harmful aquatic organisms and pathogens through the control and management of ships' ballast water and sediments, as well as to avoid unwanted side effects from that control, and to encourage developments in related knowledge and technology". Depending on the new technology used in the Other Method, verifications for approval could be different from those specified in paragraph 1.7 but keep the same level of protection.

1.12 Other Methods using organisms are not within the scope of this Procedure.

2 PURPOSE

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specified in paragraph 1.7 but keep the same level of protection.

1.12 Other Methods using organisms are not within the scope of this Procedure.

2 PURPOSE

2.1 The Procedure aims to ensure that any Other Methods approved provide an equivalent level of protection to the standards contained in the BWM Convention. The Procedure will be kept under review and updated by the Committee in light of the experience gained during its application and as the state of knowledge and technology may require.

2.2 The purpose of the Procedure is to:

.1 provide a uniform interpretation and application of the requirements for the approval of Other Methods permitted under regulation B-3.7;

.2 ensure that Other Methods approved by an Administration are capable of at least achieving equivalence to the level of protection provided by the standards of the BWM Convention with respect to the prevention of the transfer of harmful aquatic organisms and pathogens as required by regulations B-3.1 to B-3.5;

.3 assist in determining the information necessary for the approval in principle of Other Methods under regulation B-3.7 of the BWM Convention and

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transfer of harmful aquatic organisms and pathogens as required by regulations B-3.1 to B-3.5;

.3 assist in determining the information necessary for the approval in principle of Other Methods under regulation B-3.7 of the BWM Convention and identify the roles and responsibilities in providing such information;

.4 assist Administrations in conducting the approval of an Other Method;

.5 provide guidance to manufacturers, shipowners and other interested parties involved in determining the suitability of an Other Method to meet the requirements of the BWM Convention; and

.6 provide the approval process used by the Committee.

3 DEFINITIONS